

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Brian DeRoberts	Team: Team # 2	CCRB Case #: 200808655	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 06/17/2008 8:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/17/2009	Precinct: 101		
Date/Time CV Reported Wed, 06/18/2008 1:20 AM	CV Reported At: Other NYPD unit	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/18/2008 3:37 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Donnell Myers	10314	934020	101 PCT
2. POM Douglas Rome	31085	937428	101 PCT
3. POM Edward Moore	31535	937131	101 PCT
4. An officer			101 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Joseph Digennaro	04419	906107	101 PCT
2. POM Christophe Dalessandro	21293	936420	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Donnell Myers	Force: PO Donnell Myers used physical force against § 87(2)(b)	A . Exonerated
B . POM Douglas Rome	Force: PO Douglas Rome used physical force against § 87(2)(b)	B . Exonerated
C . POM Edward Moore	Force: PO Edward Moore used a chokehold against § 87(2)(b)	C . Unfounded
D . An officer	Discourtesy: An officer spoke obscenely to § 87(2)(b)	D . Officer(s) Unidentified

Synopsis

On June 17, 2008, at approximately 8:45 pm, § 87(2)(b) and her daughter, § 87(2)(b) were outside their apartment building, § 87(2)(b) in Queens, when five plainclothes officers exited an unmarked car. These officers were identified by the investigation as Sgt. Joseph Digennaro, PO Donnell Myers, PO Douglas Rome, PO Christopher Dalessandro and PO Edward Moore and they approached § 87(2)(b) who was sitting on the steps of § 87(2)(b). In her complaint, § 87(2)(b) alleged that PO Myers continuously punched and physically subdued § 87(2)(b) (Allegations A), after she wanted to see what the officers were doing to § 87(2)(b). PO Douglas Rome also assisted in subduing and handcuffing § 87(2)(b) (Allegation B). This provoked § 87(2)(b) to intervene and she lunged forward but was stopped by PO Edward Moore. Allegedly, PO Moore proceeded to wrap his arm around § 87(2)(b)'s neck and forced her head against the side of his chest (Allegation C). § 87(2)(b) was handcuffed and placed in an unmarked police car. § 87(2)(b) wanted to speak with her daughter and an unidentified officer with brownish-blond hair, allegedly told her that she could not "Fucking talk to her" (Allegation D).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation A** be *exonerated*. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation B** be closed as *exonerated*. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) It is therefore recommended that **Allegation C** be closed as *unfounded*. § 87(2)(b) § 87(2)(b) alleged that an officer, who remains unidentified, cursed at her. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation D** be closed as *officer unidentified*.

§ 87(2)(g)
§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b)-old black female, employed § 87(2)(b), filed this complaint on behalf of her daughter, § 87(2)(b) on June 18, 2008, with Transit Bureau 20 (encl. 7a-b). This complaint generated IAB log number 08-27130 and was received by the CCRB on June 18, 2008 (encl. 8a-b). On June 19, 2008, § 87(2)(b) called the CCRB and filed a duplicate complaint via phone (encl. 9a-b). § 87(2)(b) provided a telephone statement to the CCRB on June 25, 2008 (encl. 10) and a sworn statement to the CCRB on July 1, 2008 (encl. 11a-f). § 87(2)(b)'s initial complaint to TB20 was not consistent with her intake, telephone, and sworn statements to the CCRB. These discrepancies are noted below.

§ 87(2)(b) stated that on June 17, 2008, she was outside her apartment building, § 87(2)(b) which is part of a 5-building complex. § 87(2)(b) had been around the building since 2:15-2:30 PM, when she got home from work, and had been outside since briefly dropping off her things in her apartment. The complex is frequented by the police, and on that day there had been a number of incidents involving the police. One incident involved a woman with red hair from the building complex who was in a dispute with another family member. The police had responded and issued some kind of order of protection. Another incident involved a woman named "§ 87(2)(b)" (real name § 87(2)(b) § 87(2)(b) and the buildings' owner, § 87(2)(b). At some point while § 87(2)(b) was outside, along with her § 87(2)(b)-old daughter, § 87(2)(b) and several other parents and children from the houses whose names § 87(2)(b) did not know. The

children were sitting on the front steps of § 87(2)(b) when § 87(2)(b) drove up in his jeep and singled out § 87(2)(b) stating, § 87(2)(b) “what’s this mess on the steps?” referring to the children. § 87(2)(b) stated that § 87(2)(b) has been annoyed with people hanging out outside the building and is not on very good terms with most of the tenants – particularly § 87(2)(b) who has a “big mouth.” § 87(2)(b) s son, § 87(2)(b), then called her on her cell phone and told her that the lights in the apartment had been turned off. § 87(2)(b) became angry, walked up to § 87(2)(b) office door inside the building and kicked it, trying to get to the lights; § 87(2)(b) did not know if § 87(2)(b) damaged the door. § 87(2)(b) then called the police, and a few uniformed officers responded. Once § 87(2)(b) explained the situation, including telling the officers that she had kicked the door, the officers told § 87(2)(b) he had to turn the lights back on in the apartment. The officers also told the tenants that they would have to move from the stairs because § 87(2)(b) did not want them sitting there, blocking the entrance. The uniformed officers left, and did not arrest § 87(2)(b) or take a report.

Hours later, at approximately 8:45 pm, § 87(2)(b) was still outside, along with § 87(2)(b), § 87(2)(b), § 87(2)(b) s baby boy, and several other tenants from the buildings, including a woman named § 87(2)(b). The buildings’ security guard, § 87(2)(b) was closing the front gates for the evening. § 87(2)(b) was standing by the steps to § 87(2)(b) § 87(2)(b) was a few feet away, on the other side of a small walkway by a brown metal gate; § 87(2)(b) was also with § 87(2)(b) and the two were putting § 87(2)(b) s baby in a stroller. Five plainclothes officers exited a black unmarked car and approached § 87(2)(b). There was one black officer – PO “Meyers,” whose name and shield number (10314) § 87(2)(b) received later at the stationhouse and she described him as a black male, tall, 5’11”-6’, medium-large build, “goofy/nerdish-looking”; wearing shorts and a jersey or T-shirt of some unrecalled color and was later determined by the investigation to be PO Donnell Myers. There were also four white officers present, including one named PO “Rome”.

The officers asked § 87(2)(b) what her name was, she provided it, and the officers said, “You’re the one that we’re looking for.” The officers waited for § 87(2)(b) to put her baby in the stroller and then surrounded her. § 87(2)(b) stated that the officers formed a circle around § 87(2)(b) standing shoulder-to-shoulder. Once the officers surrounded § 87(2)(b), § 87(2)(b) became concerned and wanted to see what the officers were doing. § 87(2)(b) is tall for her age. She wedged her way between two officers – PO Myers on the right, and another officer § 87(2)(b) could not recall which officer, other than to state that it was not PO Rome) on the left – by sticking her hands out in front of her, palms together, and “parting” the officers at the shoulders by spreading apart her hands. § 87(2)(b) was standing 4-5 feet away from § 87(2)(b) and the officers at that time. As soon as § 87(2)(b) parted the officers, PO Myers swung his right hand around and struck § 87(2)(b) on the right side of her face with a closed fist. § 87(2)(b) stated that § 87(2)(b) did not strike PO Myers or any other officer or make any physical contact beyond wedging herself between the two officers prior to that point. PO Myers continued to punch § 87(2)(b) forcefully in the head and face. After about the third strike, PO Myers swung § 87(2)(b) to the ground, next to the brown fence. PO Myers then got on top of § 87(2)(b) and continued to strike her with his right hand; § 87(2)(b) could not tell what PO Myers was doing with his left hand. § 87(2)(b) was holding her hands and wrists up to her face to block the strikes, and was putting her knee up to her chest to protect herself. § 87(2)(b) stated that § 87(2)(b) never struck, or attempted to strike, PO Myers. In § 87(2)(b) s initial complaint to the NYPD, she stated that PO Myers was arresting § 87(2)(b) § 87(2)(b) at their residence when § 87(2)(b) suddenly began to attack the officer.

As soon as PO Myers started punching § 87(2)(b), § 87(2)(b) attempted to lunge forward to intervene, but two of the other officers stopped her (again, § 87(2)(b) could not say which officers, except that PO Rome was not one of them). One officer held § 87(2)(b) in a headlock on her right, with his arm wrapped around her neck and her head against the side of his chest; the other officer held her arms back. § 87(2)(b) continued to struggle and attempt to intervene and was also yelling at PO Myers that § 87(2)(b) was only § 87(2)(b) old and pleading with the other officers to get PO Myers off of § 87(2)(b). § 87(2)(b) was wearing a button-down shirt and due to the struggle, her left sleeve ripped at the seam and she lost a few buttons. Other adults and neighbors were also yelling at PO Myers to stop hitting § 87(2)(b). § 87(2)(b) was screaming and yelling for § 87(2)(b) to help her.

At some point while § 87(2)(b) was on the ground, § 87(2)(b)'s shirt came off. § 87(2)(b) did not know how this happened. She stated that she turned to beg the officers holding her to get PO Myers off of § 87(2)(b) and when she turned around, § 87(2)(b) was without her shirt, still on the ground, with PO Myers still striking her in the head. § 87(2)(b) stated that PO Myers struck § 87(2)(b) a total of 5-6 times. The total time PO Myers was striking § 87(2)(b) lasted a few minutes. PO Myers then lifted § 87(2)(b) to her feet and placed her in handcuffs. No other officer assisted PO Myers. § 87(2)(b) was then placed in the black unmarked car. § 87(2)(b) was still upset and yelling and crying, and § 87(2)(b) tried to calm her down. § 87(2)(b) asked one of the officers (white male, with brownish/blondish hair) if she could talk to her, and he responded, "No you can't fucking talk to her." At some point while § 87(2)(b) was in the unmarked car, a marked patrol car responded to the location, and § 87(2)(b) and § 87(2)(b) were placed inside and transported to the stationhouse. § 87(2)(b) still did not have her shirt on when she was transported to the stationhouse. § 87(2)(b) did not observe any injuries on § 87(2)(b) while she was at the location.

§ 87(2)(b) went directly to the 101st Precinct but was unable to see § 87(2)(b). At the stationhouse, PO Myers took § 87(2)(b)'s ID to make a photo copy of it, but would not look her in the eyes or talk to her. § 87(2)(b) was furious with PO Myers and did not want to speak to him anyway, and so tried to get information from the other officers, specifically, PO Myers's name and shield number. The other officers at the stationhouse were unhelpful, acting like they did not know who PO Myers was, and made jokes – a white-shirted officer behind the desk asked, "Oh, you're [here for] the daughter who hit [PO Myers]?" and one of the other officers said jokingly, "You didn't see his black eye?" However, PO Rome spoke to § 87(2)(b) and provided his information and that of PO Myers. § 87(2)(b) was still unable to see § 87(2)(b) but learned that her shirt was back on. § 87(2)(b) returned home but called the precinct repeatedly, and spoke to PO Rome on several occasions. PO Rome explained that § 87(2)(b) was going to be taken to the Spofford Juvenile Center and then to Bronx Family Court. § 87(2)(b) finally saw § 87(2)(b) around 5:00 pm the next day, at family court.

§ 87(2)(b) stated that she was not concerned about the allegations pertaining to herself, specifically, the force used to restrain her, and the discourtesy by PO3. She was only complaining about what PO Myers did to § 87(2)(b). She stated that she probably would not have been nearly as upset if PO Myers had only hit § 87(2)(b) once and then restrained her, but the way he continued to punch her as if she were a grown man shocked § 87(2)(b) as it did the other neighbors. § 87(2)(b) stated that the security guard, § 87(2)(b) was far down the walkway by the time the police arrived and probably did not see clearly what happened; but § 87(2)(b) asked § 87(2)(b) the next day if § 87(2)(b) was alright. § 87(2)(b) also stated that there are security cameras that monitor the location where the incident occurred but that § 87(2)(b) would most likely not cooperate with the investigation, as he has purposely erased footage in the past for similar circumstances. § 87(2)(b) stated that she would probably not recognize any of the officers from photos, other than PO Myers.

Results of Investigation

§ 87(2)(b)
§ 87(2)(b), a § 87(2)(b)-old, black female, § 87(2)(b)
§ 87(2)(b), was interviewed at the CCRB on July 1, 2008 (encl. 12a-e).

§ 87(2)(b) stated that June 17, 2008, at approximately 8:45 PM, she, her mother, § 87(2)(b) and numerous other tenants, both adults and children, from the building were standing outside § 87(2)(b). Included in the crowd were a few boys around § 87(2)(b)'s age – § 87(2)(b), § 87(2)(b), and § 87(2)(b); a woman named "§ 87(2)(b)" – the mother of one of § 87(2)(b)'s friends; a woman possibly named "§ 87(2)(b)"; and a woman who everyone calls "§ 87(2)(b)" as well as § 87(2)(b)'s son and § 87(2)(b) baby boy.

At some time prior to 8:45 pm, the landlord of § 87(2)(b) "§ 87(2)(b)" came out of the building, saw the children all sitting on the stoop, and asked § 87(2)(b) "What's this on the steps?" § 87(2)(b) replied, "Its kids," and § 87(2)(b) told her to get them off the steps. § 87(2)(b) asked for a playground to be built, and § 87(2)(b) threatened to call ACS on her. § 87(2)(b) got into his car and drove away. § 87(2)(b) son was talking about how the electricity in their apartment had been turned off, and § 87(2)(b) started kicking § 87(2)(b) front door to open it and reach the electrical panels. § 87(2)(b) stated that she also observed § 87(2)(b) on the phone to the police at some point, but

also speculated that § 87(2)(b) likely called the police after § 87(2)(b) kicked in the door. The building has video monitors, and § 87(2)(b) might have seen what happened on them.

Approximately 5 minutes after § 87(2)(b) kicked in the door, 5 plainclothes officers, all wearing green bands on their arms, walked up to § 87(2)(b). At that time, everyone was merely standing around or sitting on the steps. § 87(2)(b) had been trying to get her kids into their apartment. § 87(2)(b) was with § 87(2)(b) baby, placing him in the stroller. § 87(2)(b) was not present. The officers surrounded § 87(2)(b) and began asking her questions. § 87(2)(b) could not hear the questions the officers were asking. After the officers asked their questions, they formed a circle around § 87(2)(b). All 5 officers were standing shoulder-to-shoulder. They began placing her in handcuffs. § 87(2)(b) was upset and possibly making statements, but was not physically resistant in any way. § 87(2)(b) became angry and wanted to see what the officers were doing. She walked up behind PO1 (described by § 87(2)(b) as a tall black male, shaved bald, “big in the arms”/muscular; wearing a white shirt with “stuff” on it and identified by the investigation as PO Donnell Myers) and PO2 (short white male, low haircut, “big in the arms”/muscular; wearing a navy-blue shirt). § 87(2)(b) made a knife with her hands out in front of her, palms together, and wedged between PO Myers, on the right, and PO2, on the left. § 87(2)(b) then spread her hands apart to “part” PO Myers and PO2, saying, “What are you doing?” as she did so. § 87(2)(b) stated that she was merely trying to see what the officers were doing. As soon as § 87(2)(b) parted PO Myers and PO2, PO Myers apparently thought she was going to “put [her] hands on [the officers],” and turned toward § 87(2)(b) and punched her in the left area of her forehead, above the left eyebrow. Prior to PO Myers striking her, § 87(2)(b) did not punch the officers or physically interact with them other than to wedge her way between them. After the first strike, § 87(2)(b) put her hands and wrists up over her forehead, attempting to block her face. PO Myers continued to punch § 87(2)(b)'s forehead. After a few strikes, § 87(2)(b) ended up on her back on the dirt ground. § 87(2)(b) did not know exactly how she ended up on the ground, but § 87(2)(b) one of the punches might have knocked her over. PO Myers stood above her at that time and continued punching. She was screaming and cursing at PO Myers (she could not recall what she said); she did not recall PO Myers saying anything. While on the ground, § 87(2)(b) continued to attempt to block her face with her left hand, and tried to swing her right arm to hit PO Myers back, but could not land a punch because he was “tall and big,” and because he was still striking her. At some point after she fell to the ground, § 87(2)(b)'s shirt, a red Polo shirt, came off; § 87(2)(b) did not know how this happened. § 87(2)(b) estimated that PO Myers punched her five times in the head. He did not punch her anywhere else.

During the time that § 87(2)(b) was being punched, § 87(2)(b) was yelling at the officers, “What are you doing? That’s my daughter” and trying to physically intervene. However, PO2 and PO3, (described by § 87(2)(b) as short white male, shaved bald; “a little big in the arms”/muscular, with a pointy nose; wearing a plain white shirt) held § 87(2)(b) back. PO2 was on § 87(2)(b)'s right side, and held her in a headlock, wrapping her head between the left side of his chest and his left bicep; and PO3 was holding onto § 87(2)(b)'s left arm. § 87(2)(b) was wearing a white shirt, and, apparently due to the struggle, the shirt became ripped along the left shoulder. Many other adults from the area were saying to PO Myers, “How you gonna hit a § 87(2)(b) girl?”

After punching § 87(2)(b) approximately five times, PO Myers lifted her to her feet, and handcuffed her. § 87(2)(b) was still not wearing a shirt at that point. PO Myers then placed her in a black car, but she was later transferred to a marked patrol car. § 87(2)(b) did not know exactly when the marked patrol car arrived, but § 87(2)(b) it may have been at some point while she was on the ground. § 87(2)(b) was still upset and screaming, and kicking the door of the patrol car. § 87(2)(b) was trying to calm her down. § 87(2)(b) was also placed in the marked patrol car, and a uniformed officer transported both to the stationhouse. Once at the stationhouse, § 87(2)(b) was taken upstairs and handcuffed to a bench. At around 11:00 pm - midnight, a uniformed white female officer with long blonde hair took pictures (“mug shots”) of § 87(2)(b). This officer was not present during the incident. At around 12 - 1AM, § 87(2)(b) was driven to a juvenile center in the Bronx, where additional photos were taken. 1 hour later, § 87(2)(b) was taken to another place, where she was told to use the bathroom, and given a shot. She did not know the reason for the shot. § 87(2)(b) then went to sleep, and waited the next morning to be picked up by her aunt and sister, neither of whom were present for the incident.

§ 87(2)(b)'s injuries included a large knot above her left eyebrow. The swelling went down the next day, but she still felt pain and dizziness. A few days later, a small knot appeared above her right eyebrow. She did not know how she received the second knot, but § 87(2)(b) it was from this incident because she was not injured by anything since.

Witness Statements

§ 87(2)(b) was never cooperative with providing a sworn statement to the CCRB concerning the events of June 17, 2008. An interview was scheduled at her home on July 17, 2008, at which time the investigator attempted to contact § 87(2)(b) by phone and by apartment buzzer. The undersigned called 3 times, at 4 pm, 4:30 pm, and 5 pm, but there was no answer. At approximately 4:45 PM, the undersigned rang the buzzer for her apartment, and a child answered, stated that she was not in, and that she would not be back soon. On July 31, 2008, § 87(2)(b) was contacted by phone and a telephone interview was scheduled for August 1, 2008, in the afternoon because she could not take transportation or hardly move. On August 1, 2008, § 87(2)(b) was contacted and a voice message was left on her phone. A final telephone message was left for § 87(2)(b) on November 19, 2008. Letters were sent to § 87(2)(b) on July 11, 2008 and November 19, 2008.

On July 14, 2008, § 87(2)(b) provided a phone statement. She stated that when she was being arrested, the officers asked her if she had anyone to look after her kids. She asked them to wait for her son to come up the block, and then she tried to get someone's cell phone to make a call, but the officers started to grab her. The § 87(2)(b)-old girl (unnamed in the conversation) was present, and § 87(2)(b) stated that the next thing she knew, she looked back and the black officer was beating the girl up on the ground. The girl's shirt came up over her head and off of her. The girl was reacting by yelling, "I'm a little girl. Stop." § 87(2)(b) and the girl were placed in the back of a car and taken to the stationhouse. The girl was first taken upstairs, but later when both were being photographed, § 87(2)(b) observed knots on the girl's head.

Canvass of § 87(2)(b) in Queens

Investigator Carl Snodgrass conducted fieldwork on July 17, 2008, at § 87(2)(b) and the surrounding buildings, § 87(2)(b) and § 87(2)(b) § 87(2)(b) (encl. 13a-b). The investigator left three canvass letters: one was left above the mailboxes in the lobby of § 87(2)(b), one was left in the front corridor of § 87(2)(b) (the first building of the group), and one was left with § 87(2)(b) a resident of § 87(2)(b) #1A, who stated that she observed the incident but did not wish to make a statement at that time. She stated that she would call.

The following is a description of the layout of the location where the incident occurred. There is a 5'-tall brown metal gate separating the building complex from the street. On the building side of the gate is a 5-6'-wide dirt/grass area between the gate and the stairs leading up to the courtyard between § 87(2)(b) (on the left when facing the buildings from the street) and § 87(2)(b) (on the right). There is a door in the gate directly in front of these stairs, and a garbage can on the left (when facing in from the street), which is presumably where the altercation occurred. There is a security camera positioned approximately 10-15' up on the front side of § 87(2)(b) facing the area where the incident occurred.

The investigator attempted to subpoena video footage from manager § 87(2)(b), whose office is on the side of § 87(2)(b). § 87(2)(b) was not in the office, but one of his employees, § 87(2)(b), was. § 87(2)(b) could not access the video footage without § 87(2)(b) password. § 87(2)(b) was contacted by phone and stated that he would not be coming back to the office today. § 87(2)(b) reiterated that he did not understand why the investigator was trying to get the footage from him when he had already informed the investigator that the police and the ADA have the footage. § 87(2)(b) stated that he might still have a copy, as he likes to keep copies of the footage for himself, but he would have to check. The investigator informed him that it would be best to get an original copy of the footage rather than one in the possession of the police or ADA. The subpoena was left in the office and the investigator asked § 87(2)(b) to check for the footage, and told § 87(2)(b) he would be in contact.

Brief, informal statements were obtained from § 87(2)(b) (last name unknown), a maintenance worker named § 87(2)(b) (last name unknown), the building manager, § 87(2)(b), and § 87(2)(b).

§ 87(2)(b) stated that she did not see directly what occurred. She lives on the § 87(2)(b) of § 87(2)(b) and heard someone kicking at the door to the management office. She went downstairs and another tenant told her that § 87(2)(b) had been trying to kick the door in. § 87(2)(b) observed the apparent damage to the door and called 911. 5-6 minutes later, a marked patrol car responded. § 87(2)(b) was in a friend's apartment at the time and only saw what was happening through a window. The patrol car officers spoke to § 87(2)(b) outside the front of § 87(2)(b) and then left. 7-8 minutes later, a black Impala containing approximately 6 plainclothes officers approached. § 87(2)(b) stated that there was at least one black officer, PO1, and one officer looked like an officer named PO Paulson (a white male) who § 87(2)(b) knows from the 101st Precinct. There were at least 30 civilians around the area at that time. § 87(2)(b) was trying not to be seen from her friend's § 87(2)(b) window because she did not want to get involved and specifically did not want any tenants to know she was watching. She did not know what happened but stated that while § 87(2)(b) was being arrested, a young girl (a tenant's daughter, name unknown) was also being arrested. § 87(2)(b) could not tell what was happening and described what she saw as a mob riot with "hands flying everywhere." However, she did not see the girl hitting any officer and did not see any officer hitting the girl. She did not see the girl with her shirt off at any point. Other civilians were "in [the officers'] faces," saying, "Why'd the girl get arrested?!" § 87(2)(b) did not see PO1 interacting with the girl; the only time she saw PO1 was after the arrests - he was standing by the black Impala with his arms crossed. § 87(2)(b) stated that she later heard a tenant (she did not know which) stating, "She hit the cop."

§ 87(2)(b) came into the manager's office while the investigator was speaking to § 87(2)(b). He stated that he did not see anything that happened. When the investigator left the office, § 87(2)(b) followed and said that he did observe some part of the incident but could not tell what happened. He was in the manager's office and saw the commotion on the camera, but by the time he got outside to see what was happening, everything was over. He did not see physical force used by either the officers or the girl.

§ 87(2)(b) stated over the phone that he did not see the incident but watched the video monitor after the fact. He stated that he was "shocked" and "cannot § 87(2)(b) his tenants." He stated that the video clearly shows the girl punching an officer.

§ 87(2)(b) although she did not wish to provide a statement at the time of the fieldwork, stated that she was on the steps between § 87(2)(b) and § 87(2)(b) when the incident occurred. She was very surprised that the girl was arrested and that such excessive force was used against her, and stated that the girl is known in the neighborhood and not a trouble-maker.

Surveillance Footage

On July 25, 2008, surveillance footage was obtained from ADA Kwan from the Queens District Attorney's office. As she stated, it is only footage of § 87(2)(b) kicking the door to the office. There is nothing pertaining to the officers involved.

On February 18, 2009, surveillance footage was obtained from ADA Boccio at Queens Family Court. The footage (which is not recorded in continuous time, but rather delayed frame by frame time) illustrates that § 87(2)(b) (wearing a red shirt) did approach the officers from behind by walking up to them. What appears to be four plainclothes officers (identified by the investigation as PO Myers, PO Rome, PO Moore, and PO Delessandro) had § 87(2)(b) surrounded. Approximately 10 other individuals (children, male and female adults) are within no more than five feet of the four officers and § 87(2)(b). Immediately following § 87(2)(b) approaching the officers from behind, PO Myers turns around and becomes engaged in a forceful interaction with § 87(2)(b). § 87(2)(b) is then on the ground. PO Myers is then seen removing his handcuffs from his utility belt while standing above § 87(2)(b). PO Myers then picks § 87(2)(b) up and forcefully pushes her up against a nearby fence. PO Rome, who pointed himself out in the footage, then grabs § 87(2)(b) in her waist area, while PO Myers is still struggling with § 87(2)(b). § 87(2)(b) is handcuffed and escorted to an unmarked patrol car by

PO Myers and PO Rome. Approximately 20 individuals are around witnessing the incident. § 87(2)(b) (wearing a white shirt and dark Capri pants) is viewed throughout the footage. The officers are seen holding her back and essentially blocking her from getting to § 87(2)(b). None of the officers are seen placing or holding § 87(2)(b) in a headlock at any point. Nevertheless, the precise details of the physical force, including the alleged punches from both parties, are difficult to gauge and not evident because the surveillance footage is not a continuous stream of video.

Identification of Officers Interviewed

All the officers interviewed for this case have been identified by police department documentation and the video footage obtained from the incident. All the officers interviewed confirmed their presence.

Officer Statements

Police Officer Donnell Myers

On April 1, 2009, PO Donnell Myers, a § 87(2)(b) old black male, § 87(2)(b), was interviewed at the CCRB concerning the events that took place on June 17, 2008 (encl. 14a-g).

On June 17, 2008, PO Myers worked from 4:00 pm to 12:00 am. PO Myers was assigned to anti-crime in the 101st Precinct and has since been resigned to the Queens Gang Unit. He was partnered with Sgt. Digennaro, PO Moore, PO Dalessandro, and PO Rome. PO Myers was assigned to an unmarked grey Impala. PO Myers was positioned in the front passenger seat of the vehicle for his entire tour.

PO Myers read the following memo book entry into the record: "Tuesday, 6/17/08 – tour 1500 x 23:35. Assignment anti-crime, Digennaro, Rome, Dalessandro, Moore. 1500 - Present for duty, RMP # § 87(2)(b). No violations observed. 1700 - 10-98. 2050 - One under in front of § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b). § 87(2)(b) DOB – § 87(2)(b), § 87(2)(b) -old. 2055 - At the 101 stationhouse. 2100 -Notified mother, § 87(2)(b), § 87(2)(b), § 87(2)(b) DOB – § 87(2)(b). Phone number § 87(2)(b). 2114- Contacted juvenile crime desk, PO O'Connell."

The ambulance call report for PO Myers was received. The report noted that a § 87(2)(b) old male was found ambulatory at the police Precinct. The left side of his face was hurt due to an assault. A physical examination was negative for bleeding, negative for deformity, positive for swelling due to a small abrasion, and negative for SOB (Shortness of Breath). No other complaints were noted. PO Myers refused to go to the hospital for further evaluation.

PO Myers stated that on June 17, 2008, § 87(2)(b) of § 87(2)(b) in Queens, was at the 101st Precinct stationhouse and spoke with PO Myers on the front steps of the stationhouse. § 87(2)(b) explained that a female who lives in the building had kicked in his office door and damaged it and he has the entire incident on video. § 87(2)(b) was having problems getting the police to respond. This was the first time § 87(2)(b) complained to PO Myers regarding this incident. PO Myers has worked with § 87(2)(b) in the past. PO Myers used to be in CPU (community policing unit) and § 87(2)(b) was his beat. At that time, PO Myers was frequently in contact with the building managers, including § 87(2)(b). PO Myers had § 87(2)(b) phone number and § 87(2)(b) had PO Myers. § 87(2)(b) would call PO Myers instead of calling 911.

Following § 87(2)(b) complaint, the anti-crime team, consisting of Sgt. Digennaro, PO Rome, PO Dalessandro, PO Moore and PO Myers, responded to the front entrance of § 87(2)(b). § 87(2)(b) is a four story FTAP (trespass affidavit program) apartment complex. PO Myers stated that the police constantly have problems at this location for drug use in the hallway, criminal mischief, graffiti, and people loitering in front of the building. PO Myers is familiar with the residence. It was his beat for 4 to 5 months before going to the anti-crime unit.

The officers arrived at the scene at approximately 8:45 pm, and observed 40 to 50 people in front of § 87(2)(b). People were sitting down on the sidewalk and kids were playing. The crowd immediately knew the anti-crime team was the police. Nobody in the crowd was a threat upon initially arriving. PO Myers was not given any orders to complete any specific tasks. PO Myers used his cell phone to call § 87(2)(b).

and asked him if the female (he described as a black female, straight hair, wearing a pink shirt, 5'8" tall, 165 pounds and identified through the investigation as § 87(2)(b) who damaged his office door was still in front of the building. § 87(2)(b) told PO Myers that she was. PO Myers and PO Dalessandro walked around the corner of the building complex, to see the door. They observed that the door was damaged. PO Myers and PO Dalessandro returned to the front of § 87(2)(b) PO Moore and PO Rome were now standing inside the gate area of § 87(2)(b) and Sgt. Digennaro was sitting inside the front driver's seat of the unmarked Chevy Impala parked in front of § 87(2)(b) PO Myers was still on the phone with § 87(2)(b) stated that he wanted § 87(2)(b) arrested for criminal mischief. PO Myers approached Sgt. Digennaro and told him the details of his phone conversation with § 87(2)(b) and that he had observed the damaged door. At this point, § 87(2)(b) was to be arrested. The officers had been on the scene for approximately 10 to 15 minutes.

PO Myers attempted to disperse as many of people as possible from the front of § 87(2)(b) so that the anti-crime team could arrest § 87(2)(b) without incident. There was no way that the officers could safely arrest § 87(2)(b) with that many people around. He informed the people on the sidewalk that there is no loitering or hanging out outside the building as indicated by the posted signs. PO Myers instructed the crowd to leave. § 87(2)(b) had told PO Myers what § 87(2)(b) was wearing and her name. § 87(2)(b) was observed sitting on the bottom of the steps of the buildings entrance. After dispersing 15 -20 people, PO Myers asked § 87(2)(b) to step outside the gate which surrounds the building and asked her why she had kicked in the office door. § 87(2)(b) told PO Myers, "I don't like that mother-fucker." § 87(2)(b) was compliant with standing up. PO Myers told § 87(2)(b) that she damaged his door and he § 87(2)(b) wants to press charges against her. PO Myers informed § 87(2)(b) to place her hands behind her back. § 87(2)(b) put her hands behind her back. PO Myers handcuffed § 87(2)(b)'s right arm. Suddenly, § 87(2)(b) said, "No, no. Wait, wait" and started flailing her left arm so PO Myers was unable to handcuff her. While wrestling § 87(2)(b) which PO Myers explained was putting his hands on § 87(2)(b) to restrain her, § 87(2)(b) (described by PO Myers as 5'6" tall, stocky build, 150 pounds) ran down the steps of the building entrance and approached PO Myers. PO Dalessandro, PO Moore, and Rome, who were also assisting in retraining § 87(2)(b) The officers had formed a circle around § 87(2)(b) PO Myers and PO Dalessandro had their hands on § 87(2)(b) and were trying to handcuff her.

As § 87(2)(b) approached, PO Myers stuck his free hand out and told § 87(2)(b) to "stay back." PO Myers was in the process of trying to handcuff § 87(2)(b) PO Myers turned away from § 87(2)(b) in order to finish cuffing § 87(2)(b). § 87(2)(b) punched PO Myers in the face with her right hand. § 87(2)(b) was positioned to the left of PO Myers and she hit the left side of PO Myers face, in his eye and temple. PO Myers turned around, let go of his handcuffs and § 87(2)(b) and saw that § 87(2)(b)'s hands were up, indicating that she was about to throw another punch. PO Myers threw a closed fist punch at § 87(2)(b) and struck § 87(2)(b) in her upper body (chest area). PO Myers stated that he may have thrown two punches at this time. The punch(es) had no effect on § 87(2)(b). § 87(2)(b) continued to swing her arms violently at PO Myers. PO Myers did not know how many times § 87(2)(b) swung at him or whether she landed any additional punches. After PO Myers threw the first two punches at § 87(2)(b) he took her to the ground, by grabbing one of her arms and pushing her down. PO Myers reached back and took his handcuffs out and managed to get § 87(2)(b)'s right hand cuffed. § 87(2)(b) was sitting on her buttocks, screaming and yelling. § 87(2)(b) jumped back up and continued to swing at PO Myers. With one handcuff on, § 87(2)(b) started swinging at PO Myers. PO Myers stretched out his arms to get § 87(2)(b) away from him and he pushed her back towards the fence.

PO Rome saw that § 87(2)(b) was fighting with PO Myers and approached them. He assisted in handcuffing § 87(2)(b) by grabbing § 87(2)(b)'s left arm. PO Myers had § 87(2)(b)'s right arm. PO Myers did not recall requesting any officer assistance. § 87(2)(b) continued to struggle. PO Rome and PO Myers wrestled with § 87(2)(b) while they were on their feet. The wrestling was limited to grabbing § 87(2)(b)'s arms. The officers got the other handcuff on § 87(2)(b) PO Myers and PO Rome walked § 87(2)(b) to the car without any further incident. § 87(2)(b) continued to scream and yell, saying, "Get the fuck off me. Fuck you." § 87(2)(b) was not crying. People started running out of the building and

came running from down the block. They were screaming at the officers. PO Myers did not recall what they were saying.

PO Moore and PO Dalessandro walked § 87(2)(b) to the unmarked Chevy Impala which was still parked in front of § 87(2)(b) approximately 15 feet away. PO Myers and PO Rome walked § 87(2)(b) to the opposite side of the Chevy Impala and placed her in the back seat. The officers called for a 10 -85, for another car to respond because the situation was getting out of hand and the crowd was now surrounding the car. A task force RMP arrived. Both § 87(2)(b) and § 87(2)(b) were then removed from the unmarked Chevy Impala and placed in the back of the marked RMP and transported to the 101st Precinct stationhouse.

The first time PO Myers saw § 87(2)(b)'s mother, § 87(2)(b) was at the Precinct. He did not recall her being at the scene or recall anyone requesting to speak with § 87(2)(b) while § 87(2)(b) was in police custody in the back seat of the RMP. PO Myers never told anyone, "No you can't fuck talk to her." PO Myers never heard any officers make this remark. PO Myers never grabbed § 87(2)(b) by the neck or placed her in a chokehold at any point during the incident. PO Myers did not observe any injuries on § 87(2)(b).

PO Myers provided two vouched photos of his face, which revealed a contusion and black eye on the left side of his face (encl. 14f & 14g). PO Myers went to the § 87(2)(b) and was treated by § 87(2)(b). A line of duty § 87(2)(b) and aided report was filled out.

Police Officer Douglas Rome

On March 31, 2009, PO Douglas Rome, a § 87(2)(b)-old white male, § 87(2)(b), was interviewed at the CCRB concerning the events that took place on June 17, 2008 (encl. 16a-e).

On June 17, 2008, PO Rome worked from 3:00 pm to 11:35 pm and was assigned to 101st Precinct anti-crime and has since been transferred to PSA 2. PO Rome was working with PO Myers, PO Moore, PO Dalessandro, and Sgt. Digennaro. PO Rome was dressed in plainclothes and assigned to an unmarked car. PO Rome did not recall where he was positioned in the vehicle.

PO Rome read the following memo book entry into the record: "2050 hours 10-92 Charlie x 2 in front of § 87(2)(b) 0205 hours end of tour."

PO Rome stated that on June 17, 2008, at approximately 8:45 pm, he and his field team (PO Myers, PO Moore, PO Dalessandro, and Sgt. Digenaro) were at the stationhouse. The superintendent for § 87(2)(b) § 87(2)(b) came to the stationhouse and told the police that a female had kicked in his door to the computer rooms. § 87(2)(b) has been the superintendent at § 87(2)(b) for some time and PO Myers knew § 87(2)(b) from CPU (community poling) when that was his beat. § 87(2)(b) stated that he had the incident of the female on videotape and knew the name of the female (identified by the investigation as § 87(2)(b)). At this time, PO Rome and the anti-crime team went to § 87(2)(b).

The officers arrived in front of the location. There was a large crowd present, approximately 10 to 20 people. Three officers waited by the car and two officers went to view the door that was allegedly kicked in. A couple of minutes later, the two officers came back and stated that the door was damaged. PO Rome did not recall which officers stayed and which went to check the door. PO Rome remained in front of § 87(2)(b) § 87(2)(b) was standing out in front of the building, to the left of the staircase. § 87(2)(b) was identified by the police and was to be arrested for the damage to the door. The officers asked the crowd to leave because they were loitering and there were signs for no loitering. The officers asked § 87(2)(b) to stay. The crowd was compliant in leaving the location. As the crowd dispersed, the officers asked § 87(2)(b) to stand up so they could talk to her by the front gate. Nobody in the crowd was considered a threat at this point. No one from the crowd was yelling or saying anything to the police. The officers did not want to make an arrest in front of large crowd so they waited for people to leave. A couple of minutes later, the officers tried to put § 87(2)(b) in handcuffs, she began to resist and was screaming. The crowd began to grow as § 87(2)(b) continued to resist.

For approximately 30 to 40 seconds, PO Rome and three other officers (all except Sgt. Digennaro) were trying to handcuff § 87(2)(b). § 87(2)(b) was resisting by not allowing the officers to get her hands and handcuff her. § 87(2)(b) was also yelling. The officers were trying to get § 87(2)(b)'s hands behind her back and cuffed. PO Rome was positioned behind § 87(2)(b) facing the back of her. PO Rome had his back to the building and people were now coming back out, however, he did not realize that, at the time. Out of PO Rome's peripheral vision, he saw a black fist come over the top of his right shoulder and PO Myers's left shoulder, striking PO Myers in the head. PO Rome did not know exactly where in the head PO Myers was struck. After PO Myers was hit in the head, he stopped handcuffing § 87(2)(b) and turned around. PO Rome continued to assist with handcuffing § 87(2)(b). Shortly after, PO Rome saw PO Myers struggling with a female (identified by the investigation as § 87(2)(b)) trying to hold and handcuff her. § 87(2)(b) was dropping her weight and twisting her body left and right because she did not want to be handcuffed. § 87(2)(b) dropped to the ground by the fence. PO Myers picked § 87(2)(b) up and told PO Rome to cuff her as PO Myers held her by her hands. PO Myers was holding on to § 87(2)(b) and screaming, "Doggie put the cuffs on her." PO Rome placed § 87(2)(b) in handcuffs. § 87(2)(b) was resisting being handcuffed. When PO Rome handcuffed § 87(2)(b) her shirt was lifted up but PO Rome did not recall how it happened. § 87(2)(b) was immediately placed in the unmarked police car with § 87(2)(b). The crowd was very unruly and upset about the arrests.

The large crowd was still present. Both § 87(2)(b) and § 87(2)(b) were placed in the unmarked RMP while the officers waited for a second RMP to arrive and transport them to the stationhouse. PO Rome did not recall if he was involved in placing § 87(2)(b) in the RMP. He did not recall if any discussion was going on with the officers and § 87(2)(b). PO Rome did not recall if anyone from the crowd intervened at this point or questioned why § 87(2)(b) was in handcuffs and in an RMP. PO Rome never told anyone in the crowd "no you can't fuck talk to her." He did not hear any officers make this remark. § 87(2)(b) was crying and not compliant with being escorted to the RMP. Once she was inside the RMP, § 87(2)(b) told § 87(2)(b) to relax. The windows were down in the RMP. They were then transported to the stationhouse and processed. PO Rome was not involved in transporting or processing § 87(2)(b).

PO Rome never grabbed anyone by the neck at any point. He never witnessed any other officers grab anyone by the neck. PO Rome never placed anyone in a headlock. PO Rome never witnessed PO Myers punch § 87(2)(b) in the head. PO Rome did not deal with § 87(2)(b)'s mother, § 87(2)(b) at the incident location and did not recall her being there nor did he know what she looked like.

At the stationhouse, § 87(2)(b) did complain that she was punched by PO Myers. § 87(2)(b) was upstairs in the juvenile room. PO Rome talked to § 87(2)(b)'s mother, § 87(2)(b) on the phone in front of § 87(2)(b). § 87(2)(b) was crying. § 87(2)(b) asked PO Rome why her daughter was arrested and PO Rome told her that § 87(2)(b) punched a police officer. § 87(2)(b) told PO Rome that it is not her fault; she grew up watching her mother being hit by her mother's boyfriend. Since then she does not like seeing men manhandle women. That is why § 87(2)(b) got upset with PO Myers in the first place. PO Rome told § 87(2)(b)'s mother that she cannot hit police officers. § 87(2)(b)'s mother asked PO Rome if he saw any bruises on § 87(2)(b). PO Rome did not see any injuries on § 87(2)(b). § 87(2)(b)'s mother never said anything about filing a complaint at this time. PO Rome was involved in contacting § 87(2)(b)'s mother because PO Myers was doing the arrest paperwork.

PO Rome was shown a copy of the video surveillance footage and pointed himself as well as PO Myers out in the video.

Police Officer Christopher Dalessandro

On March 19, 2009, PO Christopher Dalessandro, a § 87(2)(b)-old white male, § 87(2)(b), was interviewed at the CCRB concerning the events that took place on June 17, 2008 (encl. 17a-e).

On June 17, 2008, PO Dalessandro worked from 3:00 pm to 11:35 am. He was assigned to 101st Precinct anti-crime and working with Sgt. Digennaro, PO Myers, PO Rome, and PO Moore. PO Dalessandro was

assigned to an unmarked Chevy Impala. PO Dalessandro did not recall where he was positioned in the vehicle and was dressed in plainclothes.

PO Dalessandro read the following memo book entry into the record: “2050 hours - two under at § 87(2)(b) § 87(2)(b) for PO Myers and PO Moore. 2055 hours 10- 84 101 Precinct.”

PO Dalessandro stated that on June 17, 2008, at approximately 8:45 pm, the anti-crime field team responded to the apartment building on § 87(2)(b) for criminal mischief. The housing manager (name unknown) for the § 87(2)(b) housing complex had called the precinct and stated that he had video of a women kicking in a door of the management office. He provided the officers with the name of the women, her description, and what she was wearing. The anti-crime officers took that information and responded to § 87(2)(b) § 87(2)(b).

Upon arriving, the officers observed a large group of approximately 20 people hanging around the building entrance. They were just sitting around and talking and were not a threat. The women who had kicked in the door (identified by the investigation as § 87(2)(b)) was sitting in the crowd. The officers decided to wait to make the arrest until it was safer for the officers and § 87(2)(b) and so that a big scene would be avoided. The officers stood around for five to ten minutes, waiting for the large crowd to disperse. PO Dalessandro did not recall if the officers told the crowd to disperse or they waited for them to do it on their own. When the officers thought it was the proper time, they went in to effect the arrest of § 87(2)(b). PO Dalessandro did not recall if a specific order was given at this time to make the arrest. Prior to arresting § 87(2)(b) PO Dalessandro did not have any contact with any individuals.

§ 87(2)(b) began struggling, pulling and thrusting her shoulders away from the officers who were trying to handcuff her. PO Dalessandro did not recall which officers were dealing with § 87(2)(b). PO Dalessandro approached § 87(2)(b) and was involved in handcuffing her. § 87(2)(b) was being held up against a fence by the officers. The physical force PO Dalessandro used was limited to pulling § 87(2)(b)'s hands behind her back. PO Dalessandro did not recall what § 87(2)(b) was saying. The crowd started to yell at the officers but PO Dalessandro could not recall what they were saying. PO Dalessandro did not recall anyone in the crowd making any threats or being a threat to the officer's safety.

PO Dalessandro observed a little girl walk up from the side (identified from the investigation as § 87(2)(b)) and who PO Dalessandro described as a § 87(2)(b) old female wearing a pink shirt). § 87(2)(b) threw a punch, hitting PO Myers in the face. PO Dalessandro was positioned to the right of PO Myers and saw and heard the punch. The punch landed on PO Myers's side cheek. There were a lot of people now crowded around the officers. PO Myers “pulled off of § 87(2)(b) and attempted to arrest § 87(2)(b). PO Dalessandro turned around and saw PO Myers struggling with § 87(2)(b). At this point, § 87(2)(b) was on the ground. PO Dalessandro did not see how § 87(2)(b) went to the ground because he was still struggling and trying to subdue § 87(2)(b). PO Dalessandro did not know if § 87(2)(b) was compliant with being handcuffed. PO Dalessandro stated that the officers were just finishing getting § 87(2)(b) handcuffed and escorting her to the car when § 87(2)(b) struck PO Myers.

PO Dalessandro did not witness what PO Myers did after he had § 87(2)(b) on the ground besides being handcuffed. PO Dalessandro could not recall any details about how § 87(2)(b) was handcuffed. PO Dalessandro did not have any physical contact with § 87(2)(b). In the span of one minute to a minute and one half, both § 87(2)(b) and § 87(2)(b) were placed in handcuffs and brought back to the stationhouse. § 87(2)(b) was part of the crowd prior to approaching the officers and hitting PO Myers. § 87(2)(b) was sitting on the steps prior to approaching the officers and was never a threat to the officers. After the arrests, the crowds circled around the officers and were yelling but were never a threat that was considered a danger. The crowd was mostly women and yelling, “She § 87(2)(b) is only a kid.”

PO Dalessandro did not recall § 87(2)(b)'s mother ever becoming involved in the incident or speaking with any officers. There were a lot of people around and she very well could have been present. While

§ 87(2)(b) was being placed in the RMP, PO Dalessandro never told anyone, specially § 87(2)(b)'s mother, "No you can't fucking talk to her." He did not hear any officers make this remark. PO Dalessandro stated that he was more focused on § 87(2)(b) and dealing with her. PO Dalessandro did not recall if § 87(2)(b) and § 87(2)(b) were placed in the same RMP.

PO Dalessandro never used any physical force with § 87(2)(b) specifically placing her in a headlock or grabbing her by the neck. PO Dalessandro did not recall if § 87(2)(b)'s shirt was removed during the arrest or of her complaining that officers ripped her shirt off.

A cage car was called to transport § 87(2)(b) and § 87(2)(b). Both § 87(2)(b) and § 87(2)(b) were escorted to the street and placed in an RMP. PO Dalessandro was not involved in transporting either § 87(2)(b) or § 87(2)(b). He did not know who transported them to the stationhouse but was sure it was a marked RMP and uniformed officers. PO Dalessandro did not recall whether or not he had any interaction with § 87(2)(b) or § 87(2)(b) at the stationhouse. § 87(2)(b) would have been brought to the juvenile room. PO Dalessandro was most likely involved in processing the arrests and assisting with the paper work.

PO Dalessandro was shown the video surveillance of the incident. PO Dalessandro pointed out himself, PO Myers, PO Rome and Sgt. Digennaro.

Police Officer Edward Moore

On February 24, 2009, PO Edward Moore, a § 87(2)(b)-old white male, § 87(2)(b), was interviewed at the CCRB concerning the events that took place June 17, 2008 (encl. 15a-e).

On June 17, 2008, PO Edward Moore worked from 3:00 pm to 11:35 pm. PO Moore was working 101st Precinct anti-crime with Sgt. Digennaro, PO Dalessandro, PO Myers and PO Rome. PO Moore was dressed in plainclothes and wearing a sports jersey with numbers on it. PO Moore was assigned to an unmarked Chevy Impala. PO Moore was positioned in the back seat of the vehicle.

PO Moore read the following memo book entry: "1500 hours - present for duty at 101 stationhouse. 2050 hours - one female under in front of § 87(2)(b). Damaged door of § 87(2)(b), § 87(2)(b), § 87(2)(b) - 1483. 0800 hours end of tour."

PO Moore stated that on June 17, 2008, he and his field team responded to § 87(2)(b) in Queens because they had a walk-in complaint (name unknown but is the building supervisor), who stated that a female (identified from the investigation as § 87(2)(b)) had kicked in his office door. The complainant showed the police a video tape of her kicking in the door. PO Moore and his team went to § 87(2)(b). Once they arrived, they immediately observed § 87(2)(b) sitting on the steps with a group of approximately 6 people (female and male, various ages). The people were just talking amongst each other and not a threat. PO Moore and his team walked up to § 87(2)(b). PO Moore asked her if she was § 87(2)(b) and once she confirmed that she was, PO Moore explained to her why the police were there and what they are going to do. § 87(2)(b) stood up and PO Moore placed one of her hands in handcuffs. Once one hand was cuffed, § 87(2)(b) struggled a little. § 87(2)(b) did not want to be handcuffed and was forcing her wrists away from PO Moore. PO Moore and a second unidentified officer were trying to get § 87(2)(b)'s hand behind her back. PO Moore eventually managed to get both her hands cuffed without incident. This was taking place approximately 5 to 10 feet from where the group of people was sitting. The group had become boisterous and was yelling. PO Moore began to escort § 87(2)(b) towards the police vehicle away from the group of people but the group followed § 87(2)(b). PO Moore could not recall what the individuals were yelling but it was in regard to being upset with the police arresting § 87(2)(b).

At this time, § 87(2)(b) (identified by name by PO Moore) stood up and swung over PO Myers's shoulder, striking him in the face. PO Myers was standing to PO Moore's side and PO Moore witnessed § 87(2)(b)'s arm come over PO Myers's shoulder and hit him in the face. PO Moore did not know what § 87(2)(b) was doing prior to approaching the officers and stated that he never paid any attention to

her. § 87(2)(b) was never considered a threat prior to striking PO Myers. PO Myers took § 87(2)(b) to the ground, pushing her down with his hands. PO Moore did not recall if § 87(2)(b) was lying on her back or stomach but stated that her shirt was lifted, exposing her entire front as a result of being taken to the ground. PO Myers was dealing with § 87(2)(b) and PO Moore did not see what was taking place. PO Moore never saw § 87(2)(b) against the fence but did see her on the ground. PO Moore did not know what § 87(2)(b) was doing while she was on the ground. PO Moore never saw PO Myers strike § 87(2)(b) in the face with a closed fist at any point during the incident. PO Moore did not recall if § 87(2)(b) was compliant with being handcuffed or escorted to the RMP. § 87(2)(b) did not speak during the entire incident and never complained of being hit in the face. § 87(2)(b) was placed in handcuffs and escorted to the RMP by PO Myers. People who were around began yelling at the officers. PO Moore could not specifically recall what they were yelling.

PO Moore stated that he had to restrain some of the individuals during the incident in order to keep the crowd under control after arresting § 87(2)(b) but he did not recall who. Once the altercation with § 87(2)(b) occurred, Sgt. Digennaro took § 87(2)(b) near the RMP. PO Moore was just pushing the crowd back so they would get away from § 87(2)(b) and § 87(2)(b). Individuals in the crowd were now very aggressive, pushing and screaming. None of them stuck any of the officers. The crowd was upset that both § 87(2)(b) and § 87(2)(b) were being arrested.

PO Moore never dealt with § 87(2)(b)'s mother and no one complained to him that an officer just hit her daughter. Everyone around was screaming and complaining but PO Moore could not recall specifically what they were saying. PO Moore did not recall if § 87(2)(b) spoke with her mom prior to leaving the incident location. PO Moore never told § 87(2)(b) or her mother, § 87(2)(b) "No you cannot fucking talk to her." PO Moore never heard any officers make this remark. An additional RMP arrived and transported § 87(2)(b) to the stationhouse.

PO Moore stated that the only physical force he used was crowd control, pushing people to move away and handcuffing § 87(2)(b). He never placed anyone in a headlock. PO Moore never saw any officers grab anyone by the neck.

PO Moore did not have any interaction with § 87(2)(b) or her mother at the stationhouse. § 87(2)(b) was very quiet at the stationhouse. PO Moore observed a little cut to the right side of her face. PO Moore was processing § 87(2)(b)'s arrest. PO Myers face below his eye was swollen. PO Moore was shown a copy of the command log which noted that § 87(2)(b) was intoxicated. PO Moore stated that § 87(2)(b) smelled like alcohol.

PO Moore was shown the video footage obtained from the incident. He pointed out himself, Sgt. Digennaro, PO Rome, and PO Myers.

Sergeant Joseph Digennaro

On March 10, 2009, Sgt. Joseph Digennaro, a § 87(2)(b)-old white male, § 87(2)(b), was interviewed at the CCRB concerning the events that took place on June 17, 2008 (encl. 18a-c).

On June 17, 2008, Sgt. Digennaro worked from 4:00 pm to 12:57 am, as the 101st Precinct anti-crime supervisor and has since been transferred to Patrol Bureau Queens South. Sgt. Digennaro was working with PO Rome, PO Dalessandro, PO Myers, and PO Moore. Sgt. Digennaro was dressed in plainclothes and assigned to an unmarked Chevy Impala § 87(2)(e). Sgt. Digennaro was the driver.

Sergeant Digennaro read the following memo book entry into the record: "2150 hours - one female under § 87(2)(a) 160.50 PO Moore. Second under PO Myers. Female stuck a/o in face - § 87(2)(a) 160.50"

Sergeant Digennaro stated that on June 17, 2008, at approximately 8:45 pm, he and the anti-crime team (Sgt. Digennaro, PO Rome, PO Dalessandro, PO Myers and PO Moore) pulled up in front of the apartments on § 87(2)(b). The officers saw a female named § 87(2)(b) (identified by the investigation as § 87(2)(b)) that was recognized as being wanted by the squad. The buildings super had

previously stated to the police that § 87(2)(b) had vandalized property and tried to break into one of the apartments on § 87(2)(b). This is a typical situation for anti-crime to respond to. The building owner, name unknown, had shown the police a picture of § 87(2)(b) as well as provided her name.

The anti-crime team responded to § 87(2)(b). § 87(2)(b) was observed in front of the building. Sgt. Digennaro could not recall at what point § 87(2)(b) was observed and where in front of the building she was. The officers watched § 87(2)(b) for a couple of minutes and waited for some people to leave so it would be easier to make the arrest. Once people stepped away from § 87(2)(b), Sgt. Digennaro and officers approached her. Sgt. Digennaro did not recall what § 87(2)(b) was doing, what her behavior was like, and whether it changed once the officers approached her. Sgt. Digennaro remained by the car in case § 87(2)(b) tried to run and he needed to chase her. § 87(2)(b) was then placed under arrest. Ms. § 87(2)(b) was not fully compliant with being arrested. When the officers went to handcuff her, § 87(2)(b) did resist a little bit. Sgt. Digennaro was not involved in handcuffing § 87(2)(b) but witnessed the arrest from approximately ten feet away. Sgt. Digennaro did not recall which officers were involved in handcuffing § 87(2)(b). There were other individuals around besides § 87(2)(b) but Sgt. Digennaro did not recall what they were doing. Sgt. Digennaro did not know if anyone was saying anything indicating that they were upset with the officers for being there.

Sgt. Digennaro did not witness any threatening individuals until after a female (identified by the investigation as § 87(2)(b)) struck PO Myers in the face. Sgt. Digennaro observed PO Myers use force with § 87(2)(b). The force was limited to overcoming his assault. PO Myers got punched by § 87(2)(b) and then PO Myers tried to wrap § 87(2)(b) up to control her arms. § 87(2)(b) kept swinging her arms and tried to “pull out” of PO Myers efforts to restrain her. At this time half her shirt came off. Sgt. Digennaro did not recall what § 87(2)(b) was wearing or whether her shirt was ripped. Sgt. Digennaro did not remember if any other officers besides PO Myers used physical force with § 87(2)(b). Sgt. Digennaro never saw PO Myers swing and or strike § 87(2)(b). Sgt. Digennaro observed a bruise near one of PO Myers eyes from being punched. He did not see any injuries on § 87(2)(b).

Sgt. Digennaro had no physical or verbal contact with § 87(2)(b) at any point during the incident. Sgt. Digennaro had no contact with § 87(2)(b)'s mother, § 87(2)(b) at any point. Sgt. Digennaro was unaware of § 87(2)(b)'s mother being present during the incident. Sgt. Digennaro never heard any officers say, “No you can’t fucking talk to her.” Sgt. Digennaro did not make this remark. Sgt. Digennaro did not see any officers put anyone in a headlock at any point. Sgt. Digennaro did not place anyone in headlock. Sgt. Digennaro did not know what § 87(2)(b)'s behavior was like after her interaction with PO Myers.

A couple of days after the incident, Sgt. Digennaro found out why § 87(2)(b) struck PO Myers. The precinct received a letter from her mother, apologizing that her daughter punched an officer. In the letter, § 87(2)(b) explained that her daughter is a witness to domestic violence and that every time § 87(2)(b) sees a man grab a woman, she snaps or freaks out and goes into a psychiatric reach.

Sgt. Digennaro observed the surveillance video and pointed him and the other members of the anti-crime team out. Sgt. Digennaro stated that once PO Myers was engaged in a physical struggle with § 87(2)(b), he approached § 87(2)(b) and took her to the RMP to get her away from § 87(2)(b) and the crowd. Sgt. Digennaro stated that PO Myers was struggling to place § 87(2)(b) under arrest. Sgt. Digennaro stated that he frisked § 87(2)(b) for weapons prior to placing her in the patrol car.

Police Documents

Sprint (encl. 21a-b)

On June 17, 2008, at 8:42 pm, at § 87(2)(b) in Queens, police communications confirmed two arrests. One minute later, an additional unit arrived on the scene and two females were transported to the stationhouse.

Roll Call (encl. 22a-g)

The 101st Precinct roll call was received for June 17, 2008. It listed Sgt. Digennaro as the anti-crime supervisor. PO Myers, PO Moore, PO Rome and PO Dalessandro were listed as anti-crime officers and all were assigned to vehicle #532.

Command Log (encl. 23)

The 101st Precinct command log was received on June 17, 2008. At 8:50 pm, the log noted that PO Myers had arrested § 87(2)(b) in front of § 87(2)(b) § 87(2)(a) 160.50. An additional note stated that § 87(2)(b), § 87(2)(b)'s, mother was at the Precinct and that at 12:05 am, § 87(2)(b) was taken to Spofford in RMP #8102 by PO Myers and PO Moore. At 8:50 pm, the log also noted PO Moore had arrested § 87(2)(b) in front of § 87(2)(b) § 87(2)(a) 160.50. § 87(2)(b) was listed as being intoxicated.

Prisoner Holding Pen Roster (encl. 24a-b)

The prisoner holding pen roster was received for June 17, 2008, and it listed § 87(2)(b) as being logged into the cells at 9:00 pm.

Property Vouchers (encl. 25 & 26)

PO Myers vouched five photos as evidence with his arrest for § 87(2)(b). PO Moore vouched a DVD as evidence with his arrest for § 87(2)(b).

On Line Booking Sheet (OLBS) (encl. 27a-b)

The OLBS for § 87(2)(b) was received and it noted that § 87(2)(b) did cause damage to the rental office door in excess of \$1500 by repeatedly kicking the door in order to gain access to the electronic equipment inside.

On Line AIDED Report (30a-e)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Line of Duty Injury Report and Witness Statements

A check of records at the 101st Precinct found no Line of Duty Injury report or related witness statements for PO Myers.

Paperwork related to § 87(2)(b)'s arrest

§ 87(2)(b)'s arrest on June 17, 2008, has been sealed and no police documents were made available for this investigation.

CCRB Histories

This is the only complaint § 87(2)(b) has filed with the CCRB (encl. 5). PO Myers has been a member of the NYPD for five years and has no substantiated complaints with the CCRB (encl. 2a-b). PO Rome has been a member of the NYPD for four years and has no substantiated complaints with the CCRB (encl. 3). PO Moore has been a member of the NYPD for four years and has no substantiated complaints with the CCRB (encl. 4).

Criminal Conviction History

§ 87(2)(a) FCT § 380.1
§ 87(2)(a) FCT § 380.1
§ 87(2)(a) FCT § 380.1

Conclusions and Recommendations

Subject Officer Identification

PO Myers was identified by § 87(2)(b) as the only black male officer from the five plainclothes officers that exited the unmarked car and approached § 87(2)(b). She further identified him by name and shield number and her description of him was accurate. PO Myers confirmed his respected role in this incident.

§ 87(2)(b) and § 87(2)(b) both stated that PO Myers was the only officer involved in using physical force against § 87(2)(b). PO Rome confirmed his respected role in this incident and the surveillance footage revealed that PO Rome, who identified himself while viewing the footage, is seen engaged in a forceful struggle with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that an unidentified officer (no description provided besides him not being PO Myers or PO Rome) placed her in a headlock. § 87(2)(b) stated that a white male officer with a navy-blue shirt and low haircut put § 87(2)(b) in a headlock. All of the officers interviewed, denied placing § 87(2)(b) in a headlock and the video surveillance did not capture any of the officers, particularly one with a navy-blue shirt, putting § 87(2)(b) in a headlock. PO Moore, who has a low haircut, stated that he had to restrain some of the individuals during the incident in order to keep the crowd under control, after arresting § 87(2)(b) but he did not recall who. The surveillance footage captures PO Moore using his body to block a woman in a white shirt, identified as § 87(2)(b) from getting to § 87(2)(b) § 87(2)(g)

§ 87(2)(b) alleged that a white male with brownish blonde hair told her, “No. You can’t fucking talk to her.” None of the officers interviewed admitted to saying or hearing this remark. No other individuals interviewed alleged that an officer used profanity with § 87(2)(b). The subject officer of this allegation therefore remains unidentified.

Undisputed Facts

It is not disputed that § 87(2)(b) approached PO Myers and impeded the anti-crime team’s arrest of § 87(2)(b)s. Following § 87(2)(b) approaching the anti-crime team, PO Myers turned around and engaged in a forceful interaction with § 87(2)(b). It is undisputed that PO Myers punched § 87(2)(b) and forcefully pushed her up against a fence. There is no dispute that § 87(2)(b) resisted PO Myers efforts to arrest her. All parties agree § 87(2)(b)s behavior was combative towards PO Myers. There is also no question that PO Rome used physical force to assist with arresting § 87(2)(b)

Disputed Facts

§ 87(2)(g) § 87(2)(b) stated that prior to PO Myers striking her, she did not punch the officers or physically interact with them, other than to wedge her way between them. § 87(2)(b)s mother, § 87(2)(b) reiterated this fact. All of the officers interviewed irrefutably stated that they saw § 87(2)(b) approach and punch PO Myers in the face. The surveillance footage, which is not continuous video rather frame by frame, illustrates § 87(2)(b) approach the officers but fails to accurately capture whether or not she punched PO Myers. § 87(2)(b) alleged she was punched by PO Myers approximately five times. PO Myers stated that he punched § 87(2)(b) 1-2 times immediately following her attacking him. § 87(2)(b) stated that PO Myers continuously pushed § 87(2)(b) until he picked her up off the ground. PO Rome, PO Moore, PO

Dalessandro and Sgt. Digennaro all stated that they did not see PO Myers punch § 87(2)(b) at any point during the incident.

§ 87(2)(g) § 87(2)(b) did not know exactly how she ended up on the ground, but believed one of the punches from PO Myers might have knocked her over. PO Myers stated that his punch had little to no effort on § 87(2)(b). § 87(2)(b) stated that PO Myers swung § 87(2)(b) to the ground. PO Myers then got on top of § 87(2)(b) and continued to strike her with his right hand. PO Myers stated that he took § 87(2)(b) to the ground, by grabbing one of her arms and pushing her down. PO Rome testified that § 87(2)(b) dropped her weight and went to the ground to avoid being handcuffed. None of the other officers were able to acknowledge in detail how § 87(2)(b) managed to get on the ground. The surveillance footage shows PO Myers grabbing and pushing § 87(2)(b) away from the other officers and § 87(2)(b) but does not capture precisely how § 87(2)(b) went to the ground nor does it show PO Myers punching § 87(2)(b) at any point during the incident.

§ 87(2)(b) stated that while on the ground, she blocked her face with her left hand, and tried to swing her right arm to hit PO Myers back, but could not land a punch because he was “tall and big,” and because he was still striking her. § 87(2)(b) stated that PO Myers stood above her and continued punching her. PO Myers stated that while § 87(2)(b) was on the ground sitting up, he reached back and took his handcuffs, managing to get § 87(2)(b)'s right hand cuffed. § 87(2)(b) jumped back up and continued to swing at PO Myers. PO Myers stretched out his arms to get § 87(2)(b) away from her and he pushed § 87(2)(b) back towards the fence. PO Rome stated that PO Myers picked § 87(2)(b) up and told PO Rome to cuff her.

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

§ 87(2)(g)

PO Myers readily admitted that he punched and forcefully struggled with § 87(2)(b) subsequent to her punching him in the face. All of the officers corroborated seeing § 87(2)(b) punching PO Myers. The footage does not specially show § 87(2)(b) punching PO Myers. Nevertheless, the footage does capture § 87(2)(b) approaching the officers and § 87(2)(b) then backing off. § 87(2)(b) is then seen again approaching the officers and at that time, is grabbed by PO Myers and physically forced back. PO Myers injuries are consistent with being punched in the eye. Photos, an Aided report and ACR reveal that his left eye was evidently bruised and swollen indicative of being punched. § 87(2)(g)

§ 87(2)(b) stated that while on the ground, she was screaming and cursing at PO Myers and was attempting to block her face with her left hand, and tried to swing her right arm to hit PO Myers but could not land a punch because he was still striking her. § 87(2)(g) PO Myers stated that he was trying to handcuff § 87(2)(b) while she was sitting up on the ground fighting with him. PO Myers stated that

he managed to get one of her hands cuffed. § 87(2)(b) then jumped up and continued to swing her arms at PO Myers. PO Myers stated that he then stretched out his arms to get § 87(2)(b) away from him and pushed her back towards the fence. The surveillance footage shows PO Myers standing over § 87(2)(b) and reaching for something from the rear of his utility belt, seemingly his handcuffs. PO Myers is then seen forcefully pushing § 87(2)(b) up against a nearby fence. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) stated that as soon as PO Myers started punching § 87(2)(b) she attempted to lunge forward to intervene, but two officers stopped her. One of these officers held § 87(2)(b) in a headlock. Every officer interviewed denied putting § 87(2)(b) in a headlock or seeing an officer put § 87(2)(b) in a headlock. PO Moore stated that he had to restrain some of the individuals during the incident in order to keep the crowd under control but he did not recall who. The surveillance footage shows that while PO Myers is struggling with § 87(2)(b) PO Moore is seen blocking a woman in a white shirt, identified as § 87(2)(b) from reaching § 87(2)(b) for approximately 15 seconds. At no point, is PO Moore or any other officer seen putting § 87(2)(b) in a headlock. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) alleged that an officer with brownish blonde hair told her, “No, you can’t fucking talk to her” while she was requesting to speak with § 87(2)(b) who was in the back seat of the patrol car. All of the officers interviewed denied making or hearing this remark. § 87(2)(g)

§ 87(2)(b)

Allegation A) Force: PO Donnell Myers used physical force against § 87(2)(b)

§ 87(2)(b) alleged that PO Myers “beat up and arrested” her daughter, § 87(2)(b). § 87(2)(b) admitted to first approaching PO Myers but stated that the only force she used was wedging her way in between the officers. PO Myers and his field team, all stated that § 87(2)(b) approached and punched PO Myers and PO Myers had to use physical force to restrain § 87(2)(b). PO Myers admitted to punching § 87(2)(b) and pushing her to the ground. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that this allegation be closed as *exonerated*.

Allegation B) Force: PO Douglas Rome used physical force against § 87(2)(b)

Neither § 87(2)(b) nor § 87(2)(b) made any allegations that a second officer besides PO Myers was physically involved in arresting § 87(2)(b). PO Rome, § 87(2)(g) stated he grabbed § 87(2)(b) while she was struggling with PO Myers and placing her in handcuffs. The surveillance footage confirms this and reveals that PO Rome used the minimal amount of force to place § 87(2)(b) under arrest. It is therefore recommended that this allegation be closed as *exonerated*.

Allegation C) Force: PO Edward Moore used a chokehold against § 87(2)(b)

§ 87(2)(b) alleged that an officer whom she could not describe placed her in a headlock following her attempts to intervene with PO Myers punching § 87(2)(b). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) All of the officers denied placing § 87(2)(b) in a headlock. PO Moore stated that he had to restrain members of the crowd but did not specially recall restraining § 87(2)(b). The surveillance footage captures PO Moore interacting and essentially blocking

§ 87(2)(b) from getting to her daughter after PO Myers is seen struggling with § 87(2)(b) but at no point during the incident, is PO Moore or any other officers seen placing or holding § 87(2)(b) in a headlock. It is therefore recommended that this allegation be closed as *unfounded*.

Allegation D) Discourtesy: An Officer spoke obscenely to § 87(2)(b)

According to § 87(2)(b) an officer whom she was only able to describe as having brownish blonde hair told her, “No, you can’t fucking talk to her” while she was trying to speak with § 87(2)(b) who was in the back seat of the patrol car. § 87(2)(g)

it is therefore recommended that this allegation be closed as *officer unidentified*.

Investigator:

Brian DeRoberts

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: